

pleadings, they are either not legal positions, or were a mistake. The Court agrees. Nothing in the pleadings directly admit that the pipeline here serves a public purpose.

Many of the “additional facts” are immaterial. For example, the specific experience of Amber Sarkari (EBMUD witness) (Fact No. 18), or whether she testified that “eminent domain” is interchangeable with “condemnation” (Fact No. 20), or whether EBMUD maintains the pipeline (Fact No. 47) are not facts directly relevant to whether the pipeline serves a public purpose.

To the extent that plaintiffs highlight the uncertainty surrounding whether the 1940s negotiations involved the “threat” of eminent domain, this is speculation. (See, e.g., Additional Material Fact Nos. 21-23, 31 [argument re inability of Amber Sarkari to testify about 1940s negotiations]; *Aguilar, supra*, 25 Cal.4th at 864 [speculation is not evidence]; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 105-106 [what witness testifies to in a deposition is not a “material fact”].)

Given that plaintiffs do not successfully meet their burden to show material disputes of fact, the motion must be granted.

12. 9:00 AM CASE NUMBER: MSN13-1889
CASE NAME: RE 316 CALLE LA MONTANA, MORAGA, CA
HEARING ON PETITION IN RE: PETITION RE: UNRESOLVED CLAIM AND DEPOSIT OF SURPLUS PROCEEDS OF TRUSTEE'S ASALE
FILED BY:
TENTATIVE RULING:

The hearing on the distribution of surplus funds is continued to April 10, 2026 at 9:00 a.m.

This matter was scheduled for hearing on the distribution of surplus funds following the sale of the property described as Legal Lot Unit 12, Subdivision 3876, Book 126, Page 8 Contra Costa County Records Assessor's Parcel Number 255-602-001. The Court did not receive any claims for the surplus funds. It appears that not all of the potential claimants were notified of the hearing.

Accordingly, the hearing is continued to allow for the clerk to serve notice on all potential claimants. The clerk is directed to send an updated Notice of Order Depositing Surplus Funds and Notice of Hearing with the new hearing date, plus a copy of this Order, to all addresses listed in the Affidavit of Mailing.

The hearing is continued pursuant to Court's motion to April 10, 2026 at 9:00 a.m. before Judge Joni Hiramoto.

Discovery Law & Motion

Continued on Next Page

13. 9:01 AM CASE NUMBER: C23-01219

CASE NAME: ELVECIO MACHADO VS. GINO CARUSO

***HEARING ON MOTION FOR DISCOVERY HAVE REQUESTS FOR ADMISSION DEEMED ADMITTED (SET ONE) AND COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION (SET ONE)**

FILED BY: CARS TO GO TOWING, INC.

***TENTATIVE RULING**

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See CCP §639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

Discovery Referee is appointed. The Court notes that there are two (2) pending discovery motions on for January 9, 2026. These constitute the fourth and fifth discovery motions brought in the past few months. Judge O’Connell decided one Discovery Motion nine days ago, on December 30, 2025. Judge O’Connell filed orders deciding two other discovery motions six weeks earlier, on November 20, 2025. The two discovery motions set for hearing on January 9, 2026 are taken off calendar and are referred forthwith to a Discovery Referee.

The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640. The Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Counsel shall prepare a written order with such findings and otherwise in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639.

The Court finds, in its discretion, that such an appointment is necessary. The Court finds that the multiple discovery motions, the existing disputes raised by the pending motions and complexity of such issues require discovery reference. (Cal. Code of Civ. Proc. Section 639(a)(5) which states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

By no later than February 6, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee’s curriculum vitae and fee schedule by no later than February 12, 2026. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 6, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept32@contracosta.courts.ca.gov by Thursday, February 12, 2026. The Court will select one of the proposed referees by unreported minute order and notify the parties. The Discovery Referee will be

requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties. (I.e., if there are five parties, each party to pay one-fifth of the initial retention fee. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

14. 9:01 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE)**
FILED BY: CARS TO GO TOWING, INC.
TENTATIVE RULING:

See Line 13.

15. 9:01 AM CASE NUMBER: MSC22-00522
CASE NAME: SABRINA MORALES VS CEMAL O KORKUT
***HEARING ON MOTION FOR DISCOVERY COMPEL SITE INSPECTION AND FOR MONETARY SANCTIONS AGAINST DEFENDANT CEMAL OGUZ KORKUT IN THE TOTAL AMOUNT OF \$5,010.00 AGAINST DEFENDANT**
FILED BY: MORALES, SABRINA
***TENTATIVE RULING**

Judgment has been entered in this case. The motion is dropped from calendar.

16. 9:01 AM CASE NUMBER: MSC21-00777
CASE NAME: COMFY HEATING & AIR CONDITIONING VS KRISHAN KALRA
***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION PURSUANT TO BUSINESS RECORDS SUBPOENA TO BIOGENEX LABORATORIES**
FILED BY: COMFY HEATING & AIR CONDITIONING INC
***TENTATIVE RULING**

On December 3, 2025, parties told the Court they settled the case.
Discovery motion dropped from Calendar per moving party's email to Dept. 32.